

Civil Rev. No. 667/2005

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT, RAWALPINDI BENCH, JUDICIAL
DEPARTMENT**

Civil Revision No. 667 of 2005

Muhammad Ayub Versus. Manzoor Hussain

Sr. No. Of Order/ Proceeding	Date of Order	Order with signatures of Judge, and that of parties of counsel, where necessary.
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04.03.2015 Mr. Mujeeb-ur-Rehman Kiani, Advocate for the
petitioner.

Sh. Zameer Hussain, Advocate for the
respondent.

This civil revision is directed against the
impugned judgments and decrees dated
07.06.2003 and 19.07.2005 passed by the learned
trial court and the learned appellate court,
respectively, whereby concurrent findings of fact
have been recorded against the petitioner.

2. Brief facts of this Civil Revision are that
the plaintiff/petitioner filed a suit for pre-emption,
pre-empting the sale of land which was purchased
by the defendant/respondent vide mutation
No.2360 dated 28.11.1998 against consideration
of Rs.40,000/- but just to defeat expected right of
pre-emption of the plaintiff/petitioner,
defendant/respondent showed this transaction as
transfer. It was averred in the plaint that on

02.12.1998 through Said Ullah son of Qazi, the plaintiff/petitioner came into knowledge of the sale while he was sitting in his house alongwith Muhammad Farooq and Noor Ellahi and the plaintiff/petitioner proclaimed his right of pre-emption. On 07.12.1998, registered AD notice attested by the witnesses was sent to the defendant/ respondent. The plaintiff/petitioner filed suit on his claim of being Shafi shareek of the disputed property, but defendant/respondent refused to accede his right of preemption. The respondent/defendant contested the suit by filing written statement and raising certain legal as well as factual objections.

3. Out of divergent pleadings of both the parties, the issues were framed by the learned trial court. Both the parties produced their evidence and after recording the same, learned trial court **dismissed the suit** of the petitioner vide judgment and decree dated 07.06.2003. Feeling aggrieved, the petitioner filed appeal and learned Additional District Judge vide judgment & decree dated 19.07.2005 **dismissed the appeal**. Being dissatisfied with the judgments and decrees of learned courts

below, the petitioner filed the instant Revision Petition and challenged the validity of both the judgments and decrees passed by the learned courts below.

4. Learned counsel for the petitioner submits that the petitioner has fulfilled the requirements of “**Talabs**” and the findings of the learned courts below are based on misreading and non reading of evidence and against the law and facts of the case. The petitioner is “*shafi-e-shareek*” being co owner in the suit land. The petitioner is also “*shafi-e-jar*”, being owner of the land contiguous to the suit land. The petitioner is ready to make the sale consideration of Rs.40,000/.

5. Conversely, the learned counsel for the respondent submits that the petitioner is not a co-sharer in the disputed land and is not entitled for a decree of possession through pre-emption.

6. I have heard the arguments advanced by the learned counsel for the parties and perused the record.

7. The perusal of record reveals that while deciding issue No.3, the learned courts below have decided the issue against the petitioner. Onus to

prove this issue was placed on the petitioner. Petitioner had to establish that he complied with the conditions of “Talabs” as required by law. There are material contradictions between the statements of PW-2 and PW-3, witnesses of jumping demand. PW-2 has stated in his cross examination that the house of petitioner has a boundary wall and it is a haveli with a large gate whereas PW-3/ Muhammad Farooq in his cross-examination has denied/contradicted the said fact and stated that the house of petitioner does not have any boundary. This is a “material discrepancy” in term of observations made by the Hon’ble Supreme Court of Pakistan in **Allah Ditta through L.Rs. and others Vs Muhammad Anar** (2013 SCMR 866). The informer/Saadullah appeared as DW-2 and stated that he never informed the petitioner about the sale. All these facts prove that the said witnesses were never present in the house of petitioner and the story narrated by the petitioner regarding first information and “Talab-e-Muwathibat/jumping demand has not been proved. Conditions of “Talab-e-ishhad” are also not fulfilled/proved as notice was not personally

served on the respondent by the postman. In the plaint, the petitioner contended that Saadullah son of Qazi informed him about the sale of his land to the respondent and he declared to pre-empt the sale by exercising his superior right of pre-emption in the same sitting on the said date, time and place in the presence of truthful witnesses. In his evidence as PW-1, the petitioner improved his version as mentioned in the plaint by stating that the informer Saadullah threatened him by stating that he has shown the sale as “*Exchange*”.

8. In view of the foregoing comprehensive discussion, it is established that mandatory requirements of “Talabs” were not duly fulfilled as per the Punjab Pre-emption Act, 1991. Furthermore, it is also established that evidence of the petitioner/plaintiff was not credit worthy being contradictory in cross-examination, therefore, learned courts below rightly discarded the evidence while dismissing his suit/appeal. Presently, before this Court as well, learned counsel for the petitioner has failed to point out any misreading or non-reading of material evidence by the courts below, warranting interference by this Court in revisional jurisdiction, therefore, this civil revision has no force. Even

otherwise, concurrent findings are not to be interfered with unless it is established that the same are the result of failure by the courts below to exercise jurisdiction so vested in them or have acted in exercise of its jurisdiction illegally or with material irregularity or the same have been rendered by misreading the evidence produced by the parties. Reference is made to **Board through Executive Officer, Cantt. Board, Rawalpindi V Ikhlaq Ahmed and others** (2014 SCMR 161).

9. In view of foregoing discussion, this Court does not find any infirmity in the impugned judgments and decrees, which are unexceptionable, therefore, this revision is **dismissed**.

(MASUD ABID NAQVI)
JUDGE

Approved for reporting.

JUDGE